

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Case No. Criminal PSLA No.43 of 2014

Asim Siddique Butt **Versus** Muhammad Khursheed Mirza etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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01.10.2015 Mr. Assad Mansoor Janjua, advocate for the petitioner.

Through this criminal Petition for Special Leave to Appeal filed under Section 417(2) of the Code of Criminal Procedure, 1898, the petitioner has assailed the judgment dated 03.04.2014 passed by the learned Addl. Sessions Judge, District Rawalpindi whereby, the learned trial court acquitted Muhammad Khursheed Mirza, respondent No.1 in complaint filed under Sections 3, 5, 7 & 8 of the Illegal Dispossession Act, 2005 filed by Asim Siddique Butt, petitioner.

2. The facts of the case, as unveiled by Asim Siddique Butt, petitioner in his complaint, are that he is owner in possession of land bearing Khewats No.187 & 26, Khatoonis No.328, 74 Khasras No.84, 86, 90 and 107 situated at Mauza Kallar Budhaal, Tehsil Kallar Syedan District Rawalpindi. In June, 2006, respondent No.1 forcibly and illegally took the possession of ten marlas land situated in Khasra No.84.

3. The learned trial court, after recording cursory evidence, summoned the respondent in this case. Charge against respondent No.1 was framed on 17.01.2011 to which he pleaded not guilty and claimed trial.

4. In order to prove its case against respondent No.1, the petitioner appeared in witness box as PW-1 and produced Muhammad Shoaib (PW-2) and Jabbar Hussain (PW-3). After

completion of petitioner's evidence, statement of respondent No.1 under Section 342 of the Code of Criminal Procedure, 1898 was recorded. After that, on the direction of this Court, statement of Raja Muhammad Ajmal, Tehsildar was recorded as (PW-4).

5. Thereafter, the learned trial court, through the impugned judgment, acquitted respondent No.1 as mentioned above hence, this petition.

6. Learned counsel for the petitioner contends that the impugned judgment is result of mis-reading and non-reading of evidence; that the petitioner produced sufficient incriminating evidence before the learned trial court to prove his case; that the prosecution proved its case through confidence inspiring and trustworthy evidence; that the impugned judgment has been passed against the established principles of justice which cannot sustain in the eye of law; that this Criminal PSLA may be allowed, converted into appeal, respondent No.1 be convicted and sentenced as per law.

7. Heard. Perused.

8. This Court has observed that the complaint under Sections 3, 5, 7 & 8 of the Illegal Dispossession Act, 2005 was filed by the petitioner after the delay of more than four years and during the intervening period, the petitioner remained mysteriously mum which cannot ordinarily be expected from a person, forcibly deprived of his valuable property. Moreover, during the trial, the petitioner has not given any plausible explanation for this inordinate delay. The occurrence of forcible dispossession, per petitioner, took place in the year 2006 while the complaint was filed by him on 05.10.2010 without giving any detail about the date and time of the occurrence and even without naming an independent witness

in presence of whom the occurrence of forcible dispossession of the petitioner by respondent No.1 took place. The complainant even moved for the demarcation of the disputed property for the first time in the year 2010. Moreover, the manner and mode of the occurrence has not been given that renders the prosecution story narrated in the complaint doubtful.

The complainant/ petitioner though endeavoured to bring on record the evidence of existing possession of the respondent over the disputed property without a valid legal right yet he remained fail to prove his forcible or illegal dispossession from the property by the respondent in absence of which the provisions of the Illegal Dispossession Act, 2005 cannot be invoked. In this regard it deems expedient and advantageous to reproduce the preamble of the said Act that reads as under: -

“WHEREAS it is expedient to protect the lawful owners and occupiers of immovable properties **from their illegal or forcible dispossession therefrom** by the property grabbers;” (underlining for emphasis)

The bare reading of the preamble makes it manifest that the enactment has been done to protect the lawful owners and occupiers of immovable property from their illegal or forcible dispossession therefrom, meaning thereby, the forcible or illegal dispossession of the occupier is a prerequisite to set the special law *ibid* into motion.

Having gone through the impugned judgment, this Court is of the opinion that the same has been passed by the learned court below after dilating upon the important aspects of the matter. Even otherwise, after the acquittal of an accused double presumption of his innocence prevails. No grave miscarriage of justice has taken place.

Discussed above leads this Court to hold that no infirmity or illegality in the impugned judgment has been noticed and the same does not call for any interference. Hence,

this Criminal Petition for Special Leave to Appeal is dismissed, being devoid of merits.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING:

Judge

'Javaid'